



CONTRACT OF SALE

BETWEEN

EXIMP & CLOVES INFRASTRUCTURE LIMITED

(VENDOR)

AND

CHARLES CHIAKPAOKE MBAOGU

(PURCHASER)

IN RESPECT OF **2 PLOTS OF LAND** MEASURING APPROXIMATELY **500.0 SQUARE METERS** EACH LYING, SITUATE AND BEING AT **IGBOYE-EPE, LAGOS.**

PREPARED BY:

A handwritten signature in blue ink, appearing to read "G. Nnaji".

**GODSLOVE S. NNAJI ESQ.
DELAWARE CHAMBERS**

**2ND FLOOR, 15 KING GEORGE V. ROAD
IKOYI, LAGOS.**

THIS CONTRACT OF SALE is made on the **19th day of April, 2026**.

BETWEEN

EXIMP & CLOVES INFRASTRUCTURE LIMITED, a company incorporated in Nigeria with its corporate office at **57B, Isaac John Street, Yaba, Lagos, Nigeria**, and **RC Number 8311800** (hereinafter referred to as "**THE VENDOR**," which expression shall, where the context so admits, include its administrators, legal representatives, agents, heirs, privies, executors, administrators, and assigns) of the one part.

AND

CHARLES CHIAKPAOKE MBAOGU of **Block 33K Lekki Pride 1.0 Estate, Lekki, Ajah, Lagos State** (hereinafter referred to as "**THE PURCHASER**," which expression shall, where the context so admits, include his agents, privies, legal representatives, successors in title, and assigns) of the other part.

1. WHEREAS:

- a. The hereditaments hereinafter described and which is intended to be hereby assigned to the Purchaser form an integral part of a large parcel of land which belongs to **EXIMP & CLOVES INFRASTRUCTURE LIMITED**.
- b. The "Property" subject matter of this Agreement is a parcel of land measuring approximately **500.00 (five hundred) square meters each**, lying, situate, and being at

Igboye-Epe, Lagos, and belonging to EXIMP & CLOVES INFRASTRUCTURE LIMITED of 57B, Isaac John Street, Yaba, Lagos, Nigeria.

- c. **EXIMP & CLOVES INFRASTRUCTURE LIMITED** has been in peaceful and undisturbed possession of the vast parcel of land and has exercised acts of ownership over the said land without let or hindrance.
- d. The Vendor is now desirous of alienating all its rights, interests, and titles in the "Property" to the Purchaser for a valuable consideration, free from all encumbrances, subject to the terms and conditions hereinafter stated.
- e. The Vendor herein has agreed to transfer and grant to the Purchaser the absolute assignment of the property and to the transfer of title in the hereinafter described property, subject to the hereinafter stated terms and conditions.

2. NOW THIS AGREEMENT WITNESSETH AS FOLLOWS:

A) THE ENTIRE "PURCHASE PRICE/CONSIDERATION" OF THE PROPERTY IS THE SUM OF N 11,000,000 (ELEVEN MILLION NAIRA ONLY).

B) THE PURCHASER HAS MADE A DEPOSIT PAYMENT OF THE SUM OF N10,100,000 ON THE VIA ELECTRONIC TRANSFER (THE RECEIPT WHEREOF THE VENDOR HEREBY ACKNOWLEDGES).

C) THE REMAINING BALANCE OF N 900,000 SHALL BE PAID TO THE VENDOR ON OR BEFORE THE 12TH DAY OF JUNE, 2026

D) THE VENDOR HEREBY AGREES TO SELL UNTO THE PURCHASER ALL THAT 2 PLOTS OF LAND MEASURING APPROXIMATELY 500.00 (FIVE HUNDRED) SQUARE METERS EACH KNOWN AND SITUATE AT IGBOYE-EPE, LAGOS, SUBJECT TO THE COVENANTS, CONDITIONS AND STIPULATIONS HEREIN.

3. THE PARTIES HEREBY COVENANT AS FOLLOWS:

- A. The Purchaser covenants to make full payment of the remaining balance of **N 900,000** on or before **the 12th day of June, 2026**.
- B. The Parties agree that upon preparation and execution of the final Deed of Assignment following full payment of all outstanding fees, the Purchaser shall be led into immediate, actual, and undisturbed possession of the entire Property.
- C. The Vendor shall ensure that the Property is properly surveyed and shall, at the Vendor's cost, procure and deliver to the Purchaser a registered survey plan of the Property.
- D. The Vendor further undertakes to provide all reasonable assistance, documentation, and cooperation required by the Purchaser in the perfection of the property transaction, while the costs and statutory fees for such perfection shall be borne by the Purchaser.
- E. Time is of the essence in this Agreement. Every date, deadline, and time stipulation in this Agreement, including but not limited to payment dates and completion, is strict and mandatory without the obligation of notice.
- F. The purchaser acknowledges that he/she has read, fully understood, and unconditionally agreed to be bound by the vendor company's policies, including but not limited to its refund policy, terms of service, privacy policy, and any other applicable terms and conditions as they may be updated from time to time.
- G. The Buyer acknowledges that it has been given a full and fair opportunity to inspect the Property, either physically or virtually (including but not limited to site visits, photographs, videos, virtual tours, drone footage, or other digital representations), and that the Buyer has conducted such inspections to its satisfaction prior to entering into this Agreement. The Buyer further acknowledges that it has made all necessary inquiries regarding the Property, including its condition, boundaries, area, access, services, and any visible or hidden defects, and is relying solely on its own perception of the inspection and inquiries made.
- H. The Buyer accepts the Property in its current condition at the date of this Agreement, and the Vendor shall have no liability for any defects, damage, or issues arising before or after completion, except where such liability cannot be excluded by applicable law.
- I. Where the Buyer grossly fails to pay any installment when due (whether by reason of delay, insufficiency of funds, dishonor, reversal, chargeback, or any other cause), the entire outstanding balance of the Purchase Price shall immediately become due and payable without demand, and the Vendor may automatically terminate this agreement. The Vendor shall not be obligated to issue any notice, demand, warning, or reminder to the Buyer before exercising any right under this clause, and no such notice shall be required to make this clause effective.

- J. If the Buyer defaults under this Agreement (including but not limited to failure to complete the full Purchase Price, breach of any covenant, or fraudulent payment), the Vendor may, at its sole option, terminate this Agreement by written notice (without prejudice to the Vendor's right to terminate automatically under any other clause); retain requisite liquidated and general damages; and resell the Property to any third party on such terms as the Vendor deems fit.
- K. Any right or remedy to which any party is or may become entitled under this Agreement or in consequence of the other's conduct may be enforced from time to time separately or concurrently with any right or remedy given by this Agreement now or afterwards provided for and arising by operation of law so that such rights and remedies are not exclusive of the other but are cumulative.
- L. Legal title to the property, together with the right to registration of any deed of assignment, conveyance, or transfer, shall remain vested in the vendor until the vendor has received and verified the full purchase price in immediately available cleared funds. No assignment, conveyance, deed of assignment, or transfer of title shall be executed and delivered or deemed to be executed and delivered to the Buyer, and no registration of such an instrument shall be effected or deemed to be effected, until the Vendor is satisfied that the full purchase price has been paid and verified. Until such time, the Buyer shall have only an equitable interest conditional upon full payment and shall not be treated as the legal owner.
- M. No amendment to or modification of this Agreement shall be effective unless it is in writing and signed by all parties to this Agreement.
- N. Any honest mistakes, errors, or inaccuracies in this Agreement shall not be deemed a true reflection of this Agreement. Instead, the true position shall be determined by the actual, honest state of facts as they exist, and the Vendor reserves the right to amend this Agreement to correct such honest mistakes and reflect the true and honest position, provided that the Contractor provides written notice to the Client specifying the nature of the mistake and the proposed amendment. Therefore, notwithstanding the clause above, where a clerical, typographical, or other unintentional error, omission, or inaccuracy is discovered in this Agreement or any document delivered under it that is inconsistent with the true intention of the Parties in relation to the Transaction, the Vendor may correct that error by issuing a written correction, and such correction shall be effective from the date the correction is issued and shall not affect the validity or enforceability of the Agreement so corrected, provided that the correction accurately reflects the Parties' original intention.
- O. Without prejudice to any other obligations of the parties under this agreement, the parties (either jointly or independently) shall, upon request by either party, take all necessary steps and execute any further documents as may be necessary or desirable to realize the arrangements contemplated by this agreement and to enable the purchaser to enjoy all rights, interests, powers, and title in the property.
- P. This Agreement supersedes any prior agreement or agreements between the parties, whether oral or written, in respect of the "Property," and any such prior agreements are

canceled upon the execution of this agreement.

- Q. The Buyer shall not assign, transfer, mortgage, charge, or otherwise dispose of any right, interest, or obligation under this Agreement, whether in whole or in part, without the Vendor's prior written consent. Any attempted assignment, transfer, or disposition in breach of this clause shall be null and void and of no legal effect. The Vendor may, at its sole discretion, refuse consent for any reason or for no reason. This clause shall survive termination of this Agreement.
- R. If any provision of this Agreement is declared by any judicial or other competent authority to be defective, inchoate, illegal, void, or otherwise unenforceable, the Vendors and their attorney shall take all necessary steps to rectify that provision in order to give effect to the general objective of the agreement. Provided always that the provision in question shall be severed from the rest of this Agreement, and the rest of the Agreement shall continue to have force and effect in law.
- S. This Agreement and the transfer of title contemplated herein are conditional upon verification of full and valid payment of the Purchase Price to the Vendor/Seller in immediately available cleared funds. If the Vendor reasonably determines, or an independent verification reasonably demonstrates, that any payment is fraudulent, counterfeit, has been reversed, charged back, blocked, or dishonored, or otherwise cannot be verified as having been received in full and cleared, the Seller may declare this Agreement void ab initio by written notice to the Buyer and shall be entitled to retain possession of the property (or to repossess it) and to pursue any remedies available in law or equity. The Buyer shall remain liable for any costs, losses, or damages suffered by the Vendor resulting from such fraudulent or unverified payment.
- T. Neither party shall be liable for any failure or delay in performing its obligations under this Agreement (other than the Buyer's obligation to pay the Purchase Price) to the extent that such failure or delay is caused by events beyond its reasonable control, including but not limited to acts of God, natural disasters, war, civil unrest, terrorism, or epidemic; government actions, regulations, policies, or administrative decisions; delays, inefficiencies, bureaucratic red tape, or failure of any government agency, ministry, department, or instrumentality (including but not limited to land registries, survey departments, approval authorities, and tax agencies); court orders, injunctions, or legal processes; or utility failures, infrastructure breakdowns, or transport disruptions. In such cases, the affected party's performance shall be excused for the duration of the force majeure event, and any time-bound obligations shall be extended accordingly.
- U. No failure, delay, or omission by the parties in exercising any right, power, or remedy under this Agreement or at law shall operate as a waiver of that right, power, or remedy, nor shall any single or partial exercise of any right preclude any further exercise of that right or the exercise of any other right.
- V. Any claim, dispute, failure, or controversy arising from or out of this Agreement or any breach thereof shall first be resolved by parties through amicable negotiation, failing which such dispute may be referred to mediation.

IN WITNESS OF WHICH the parties have executed this Deed in the manner below the day and year first above written.

THE COMMON SEAL OF "EXIMP & CLOVES INFRASTRUCTURE LIMITED"
HEREIN NAMED THE VENDOR IS HEREBY AFFIXED IN THE PRESENCE OF:



DIRECTOR



SECRETARY

SIGNED, SEALED AND DELIVERED by the within named **PURCHASER:**

SIGNATURE AREA

CHARLES CHIAKPAOKE MBAOGU

IN THE PRESENCE OF:

Name: PENDING

Address: PENDING

Occupation: PENDING

Signature: SIGNATURE AREA

Name: ORIM JOY GLORY

Address: 28, ODUYEMI STREET, ANIFOWOSHE IKEJA

Occupation: LEGAL SECRETARY

Signature: 